

as is reasonably practicable in such a way as to minimise any adverse impacts on this primary purpose. Further detail is provided in Clause 14(3) of Schedule 7 to the **Road Management Act 2004**.

- (4) The cost of complying with any duty or condition in relation to the provision of non-road infrastructure on a road reserve, the carrying out of any works on a road or the exercise of any power or function conferred by any other Act or law which affects a road is to be met by the infrastructure manager or the works manager (Clause 15 of Schedule 7 to the **Road Management Act 2004**).

11. Duties and obligations for conducting works or non-road activities on highways

- (1) The conduct of works or non-road activities on a highway must be done in accordance with section 99A of the **Road Safety Act 1986**. Note that section 3(1) of the **Road Safety Act 1986** provides that ‘highway’ means a road or road related area and that both ‘road’ and ‘road related area’ are also defined in section 3(1).
- (2) For the purposes of this Code, section 99A of the **Road Safety Act 1986** applies to any person conducting, or proposing to conduct, on a highway:

- any works within the meaning of section 3(1) of the **Road Management Act 2004**.

works includes any kind of activity conducted on or in the vicinity of a road or proposed road in connection with the construction, maintenance or repair of the road or the installation, maintenance or repair of any infrastructure in, on, under or over a road and without limiting the generality of this definition includes:

- o excavating or breaking up the surface of a road;
- o erecting a structure in, on or over a road;
- o removing or interfering with any structure or marking on a road;
- o planting or removing a tree or other vegetation;
- o tunnelling under a road;
- o connecting a road to a road;
- o installing pipes, drains, cables, poles, buildings, shelters or other structures on a road reserve; and
- o erecting any obstruction on a road or otherwise impeding the use of a road for the purpose of conducting any works; and

- any non-road activity within the meaning of section 99B of the **Road Safety Act 1986**.

non-road activity means an activity to be conducted on a road which will significantly interfere with the normal use of a road by road users in accordance with the **Road Safety Act 1986** and the regulations and rules made under that Act but does not include any activity to be conducted on a road by a police officer or a member of any emergency services agency arising out of the performance of a function or exercise of a power of that police officer or member.

Example:

A non-road activity would include the use of a road for the shooting of a film, a bicycle event, a street festival or a street market.

- (3) A person conducting or proposing to conduct works or any non-road activity on a highway must ensure that the works are conducted in a manner that is safe for road users and persons engaged in carrying out the works. Failure to comply is an offence under section 99A(2) of the **Road Safety Act 1986**.